

Mohammad Aarif v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 26 March 2021 · WRIT - C No. 8280 of 2021 · **Writ disposed of; petitioner relegated to Clause 6.5; demand and recovery to abide EE decision.**

HEADNOTE

A writ challenging an electricity demand and recovery citation, on the plea that there was no connection in the premises, was disposed of without examining the bill. The petitioner was directed to take recourse under Clause 6.5 of the Electricity Supply Code, 2005 before the Executive Engineer, who is to deal with any such application in accordance with law. The demand notice dated 10.02.2020 and recovery citation dated 13.07.2020 were left subject to that fresh decision.

FACTUAL SUMMARY

Mohammad Aarif filed a writ petition in the Allahabad High Court challenging a demand notice dated 10 February 2020 and a recovery citation dated 13 July 2020. He submitted that there was no electric connection in the premises. The State was represented by the Chief Standing Counsel. The matter was twice adjourned, first so that the petitioner could serve the writ petition and then on the respondent-Corporation's request, before being taken up on 26 March 2021.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute remitted to Executive Engineer

HOLDING

A consumer disputing an electricity bill, including on the plea that there is no electric connection in the premises, is to take recourse under Clause 6.5 of the Electricity Supply Code, 2005 by approaching the Executive Engineer. If such an application is filed, the Executive Engineer shall deal with it in accordance with law. The existing demand notice and recovery citation remain subject to that fresh decision. The writ is disposed of without a merits determination of the billing dispute. ¶ 3

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ Writ challenging demand and recovery on a no-connection plea was disposed of by relegating the petitioner to Clause 6.5 before the Executive Engineer. ¶ 3

clause-6.5-statutory-remedy-disputed-bill A dispute as to an electricity bill, including whether any connection exists in the premises, is to be raised under Clause 6.5. ¶ 3

6.5-representation-as-appropriate-remedy The petitioner was directed to approach the Executive Engineer, Electricity Distribution Division, Behat, Saharanpur under Clause 6.5; any application is to be dealt with in accordance with law, and the demand and recovery abide that decision. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ANY ELECTRIC CONNECTION EXISTED IN THE PREMISES

¶ 3

NOT DECIDED — CORRECTNESS OF THE DEMAND NOTICE DATED 10.02.2020 AND RECOVERY CITATION DATED 13.07.2020

Both left subject to the Executive Engineer's fresh Clause 6.5 decision. ¶ 3

